

District- Kushtia

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 3655 of 1996

Abdul Mannan Khan and others

...plaintiff petitioners

- versus-

Most. Alimonnessa and others

...defendant opposite parties

No one appears

... for the plaintiff petitioners

No one appears

... for the defendant opposite parties

Judgment on: 03.03.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite parties No. 1 and 2 to show cause as to why the judgment and order dated 26.06.1996 passed by the learned Additional District Judge, Kushtia in Miscellaneous Appeal No. 13 of 1990 affirming the judgment and order dated 20.11.1989 passed by the learned Assistant Judge, Kushtia, in Miscellaneous Case No. 171 of 1988 should not be set aside and the Title Suit No. 14 of 1985 should not be restored and/or passed such other or further order(s) as to this court may seem fit and proper.

The short facts for the purpose of disposal of the Rule are that the present petitioners as plaintiffs instituted Title Suit No. 14 of 1985 in the 1st Court of Munsif, Kushtia for declaration of Title against the present opposite parties who were contested the suit by filing written statement. The suit was fixed for peremptory hearing on 19.11.1988 on which date the plaintiff-petitioners filed an application seeking adjournment, but the same was rejected upon hearing. Learned Munsif dismissed the suit for default since plaintiff-petitioner was not present when the suit was called on for hearing. Thereafter the plaintiff petitioners filed an application under Order IX rule 9 of the Code of Civil Procedure for restoration of the suit after setting aside the order of dismissal for default and the said application was registered as miscellaneous Case No. 171 of 1988. The opposite party No. 1 contested the miscellaneous case by filing a written objection. The learned Assistant Judge by her order No. 94 dated 20.11.1989 was pleased to allow the miscellaneous case and set aside the order of dismissal for default and restored the suit in its original file and number with a condition to pay a cost of taka 2,000.00 (two thousand) by 09.01.1990, failing which the miscellaneous case should be treated as disallowed. Against such conditional order of cost the plaintiff petitioners prepared Miscellaneous Appeal No. 13 of 1990 before the District Judge, Kushtia. On transfer the appeal was heard by the learned Additional District Judge, Kushtia who by his judgment and order

dated 26.06.1996 disallowed the miscellaneous appeal holding that the same was not maintainable.

Being aggrieved by and dissatisfied with the judgment and order as stated above the plaintiff petitioners appellant moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule.

None appears either of the parties.

I have perused the application and the connected papers on record including the impugned judgment and the order of the trial court also.

In the present petition ground has been taken to the effect that when there is a conditional order setting aside the dismissal on payment of cost before a certain date that order is final and appealable under order 43 rule 1(c) of the Code of Civil Procedure even though there is subsequent order of dismissal on account of non payment of cost by the petitioner. In such view of the matter the learned Additional District Judge erred in law resulting in an error in the decision occasioning failure of justice in disallowing the appeal holding that the appeal is not maintainable.

For better appreciation of the matter clause (c) under rule 1 of the Order 43 is quoted below:

“1. An appeal shall lie from the following orders under the provisions of section 104, namely :-

(a)

(b)

(c) an order under rule 9 of Order IX rejecting an application (in a case open to appeal) for an order to set aside the dismissal of a suit;”

On examination of the above quoted provision of law it appears that when an application is filed under rule 9 of Order IX of the Code of Civil Procedure to set aside the dismissal order of a suit and when the same is rejected, then only appeal is maintainable. But in the present case learned trial court was pleased to allow the miscellaneous case and restored the suit in its original file and number after setting aside the dismissal order with a condition to pay cost. Thus, it is clear that since the substantive prayer of the miscellaneous case under Order IX rule 9 was allowed only the condition of payment of cost is not appealable.

In view of the above discussions I am of the view that learned Additional District Judge rightly and perfectly dismissed the appeal holding that the same was not maintainable and accordingly, I do not find any substance in the present Rule and, as such, the same is liable to be discharged.

In the result the Rule is discharged without any order as to cost.

Let a copy of this judgment be sent to the courts below at once.